Jadab Kumar Pal, M.Sc., LL.M. (Medalist), Ph.D. (IIT Kharagpur)
Deputy Chief Executive (Administration) GA
Member, Advisory Board, Dept. of Law, Brainware University, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Former Assistant Registrar, IIT Kharagpur
Indian Statistical Institute, Kolkata – 700108
Mobile: 9432489098

The 28th November 2022

To
Shri Tanweer Qamar Mohammad
Chief Vigilance Officer & Joint Secretary (Admin)
MoSPI, Room No. 309
3rd Floor, Khurshid Lal Bhawan
Janpath, New Delhi - 110001
Tq.mohammad@gov.in

Through: Chief Executive (A&F) - with a request to forward.

Sub: Request to issue vigilance clearance certificate for applying to IITD.

Sir,

Most respectfully and most humbly I'm to inform you that I sought vigilance clearance certificate on 23.05.2022 through the Chief Executive (A&F) to apply at MNLU for the post of Registrar but the **Vigilance Officer (Part Time)** of the Institute informed that a vigilance case is pending against Jadab Kumar Pal, Deputy Chief Executive (A), Indian Statistical Institute, vide **Annexure-I**. The VO (PT) sought views/comments on false, vexatious and frivolous complaint without routing it through proper channel, vide letter No. NIL, dated 25.11.2020, the complaint was communicated by a cryptic complainant given below, copy enclosed vide **Annexure - II**:

> *"The selection of Jadav Pal to the post of Deputy Chief Executive (A&F) is fake. He has no requisite experience in G.P. 6600 as advertised in the mass media."*

Views/ comments were submitted on 03.12.2020 through proper channel. ***It was specifically mentioned that it is the malicious activity of the frenemy kids in collusion with the ISI Viruses. I worked in GP-6000/- from 03.08.2010 to 07.09.2018, the fact may be verified from the official record of the Institute. And requested to drop this issue due to vague complaint against "Jadav Pal" since "Jadav Pal" and Jadab Kumar Pal is not the same person.*** Copy attached for your ready reference, **Annexure –III**, and the complaint is pending since December 2020.

As per Vigilance Manual the Commission shall not entertain a complaint where allegations are administrative in nature such as relating to transfer, posting promotion, recruitment, suspension etc. and shall be filed (no action taken) or forwarded to the Chief Vigilance Officer (CVO) for necessary action as deemed fit, vide **Annexure-IV**.

28/11/22

I requested the CPIO of the Institute on 06.07.2022 to inform me, inter-alia, the name, address and mobile number of the complainant for vigilance complaint against "Jadav Pal" with 11 points. The CPIO did not provide the information except misleading or false information.

On being appealed, the FAA informed, vide No. CAF/21-A/ 2022-23/ 562, dated 26th September 2022, vide **Annexure – V**, that presently no further information is held with the Office which can be offered on the issues raised. However, information has been sought from the PTVO and Shri T Q Mohammad, CVO & JS (Admin), MoSPI, once it is received it will be intimated to me. Then MoSPI was not in a position to relate the document /complaint on the basis of which PTVO denied the vigilance clearance, vide No. CAF/21-A/22-23/569, dated 30.09.2022, vide **Annexure – VI**, requesting to forward correspondence dated 26.05.2022. The same along with other documents was communicated to the Chief Executive (A&F) Officiating, vide e-mail dated 10.10.2022, **Annexure - VII**. However, till date no information has been given to the appellant. The Central Information Commission also decided, vide File No: CIC/CVCOM/A/2017/ 120855/SD (P Praveen Kumar Vs CPIO, CVC), **Annexure – VIII,** that the appellant cannot be denied the disclosure of file noting(s) pertaining to an investigation against his own self and the contention of the exemption from the disclosure under the grab of Section 8(1) (g) of the RTI Act is not appropriate.

I recently requested to issue vigilance clearance certificate in the prescribed format, vide e-mail dated 27.10.2022, **Annexure – XI,** to apply for the post of Registrar at BIT Mesra, and the VO(PT) advised me to apply through proper channel invoking the CVC guidelines following discussion with the CVO, MoSPI. No vigilance certificate was issued till date, which I required to upload during online application, for which I suffered irreparable economic loss and mental injury.

Few months ago, one of the elected Hon'ble members of the Council and an ethos worker of the Institute threatened me over mobile, which I recorded on 03.02.2022, he threatened with a dire consequence of my employment and vigilance cases inducing me to do an unlawful act which I ought not to do under normal course of my employment for approving / recommending leave of outsourced Disha Cooperative worker in discharge of my official public function. I also requested to initiate disciplinary proceedings or to allow me to lodge FIR before the district administration. And subsequently I sought sanction to prosecute the elected Hon'ble member of the Council and the petition is pending till today.

Moreover, another worker, while I was discharging my function as an Election Officer, threatened me over mobile which I recorded. He also misbehaved in the Office of the Council Section in presence of other workers. However, I did not make any written complaint before the Institute authority. But, these tweedledee and tweedledum belongs to the same group, having nexus with the VO(PT) as he protected the complainant to disclose their names in contravention of the law. The mala-fide intention of the complaints is to preclude me for applying to higher posts.

As per extant guidelines of the CVC, vide No.21-VGC-01, dated 07.01.2021 and its enclosure, vide OM No.104/33/2005-ADV.I, dated 29.10.2007, **(Annexure – X)** para (3) in cases where complaints have been referred to the state and no substantive response has been received from the state within three months from the date on which the reference was made, the cadre controlling authority may provide a copy of the complaint to the officer concerned to seek his comments. If the comments are found to be prima-facie satisfactory by the Competent Authority, vigilance clearance shall be accorded. Moreover, para (5) says that while granting vigilance clearance,

Jadav Pal

"S"
CE (A&F)'S Office
Receiving Date.....
Time.....
28/11/22

comments of the CVC to be obtained, and if no comments are received within a period of three months, it will be presumed that there is nothing adverse against the officer.

However, the PT (VO) of the Institute did not share the complaint letter with this applicant and no comments was sought from the CVC.

I apprehend that the VO (PT) in connivance with the others concocted this malicious complaint keeping alive the case for about 2 (two) years to harass workers of the Institute maliciously and denying the vigilance clearance certificate intentionally, and motivated by his mala-fide intention. He has also implicated the CVO saying that he has been advised by the CVO not to issue the vigilance clearance certificate to Jadab Kumar Pal as the vigilance complaint is pending with CVC, vide e-mail dated 18th November 2022, **Annexure – XI.**

As per extant guidelines regarding grant of vigilance clearance certificate to the members of the Central Civil Services/ Central Civil Posts, there are few circumstances under which vigilance clearance shall be granted, vide OM No. 11012/11/2007-Estt. (A), dated 14th December 2007:

a) Vigilance clearance shall not be withheld due to the filing of a complaint unless it is established on the basis of at least a preliminary inquiry or on the basis of any information that the concerned department may already have in its possession that there is a prima-facie substance to verifiable allegations regarding **(i) corruption, (ii) possession of assets disproportionate to known source of income, (iii) moral turpitude, or (iv) violation of the Conduct Rules**, and
b) Vigilance clearance shall not be withheld if the preliminary inquiry mentioned above takes more than three months to be completed.
c) Vigilance clearance shall not be withheld unless (i) the officer is under suspension, (ii) a charge sheet is issued against the officer in a disciplinary proceeding and the proceeding is pending, (iii) officer is involved in a trap/ raid case on charges of corruption and investigation is pending.

Para 12 of OM F.No.22034/4/2012-Estt. (D), 02.11.2012, issued by the DoPT says that it may be noted that the vigilance clearance cannot be denied on the ground of pending disciplinary/ criminal/ court case against a Government servant, if the three conditions mentioned in para 2 of the Department's OM dated 14.09.1992 are not satisfied that is **(i) suspension, (ii) issued charge sheet pending DP and (iii) pending criminal charge.** The legally tenable and objective procedure in such cases would be to strengthen the administrative vigilance and to provide for processing the disciplinary cases in a time bound manner.

Timely disposal of complaints is paramount importance. If the complaints are kept pending for long without reaching a logical conclusion the genuine complaint feels frustrated and the institute worker, if guilty, continues to get protection and if the worker is not guilt, he continues to suffer if the complaints are kept pending for long without arriving at a logical conclusion.

Instead of disposing pending complaints in a campaign mode to arrive at logical conclusion by 15th November 2022, the VO(PT) of the Institute is shifting the responsibility to the CVO and he perhaps unware of the following facts:

(i) About the jurisdiction and the extant rules and guidelines
(ii) How to deal with long pending complaints

(iii) CVC's OM regarding disposal of pending cases within 15th November 2022 as a part of AKAM, vide No. 22/VGL/029, dated 25.07.22, issued by CVC.
(iv) Para 4 of OM dated 29.10.2007

Thus, it is evident that the VO(PT) is biased, has flouted and blatantly violated the government rules and orders while dealing with the vigilance cases during the Azadi Ki Amrit Mahatsov. If a case is pending for a long time, an innocuous person suffers great loss.

Therefore, I'm sending this Advance Copy to you and requesting the competent authority of the Institute to forward the hard copy along with the enclosures through the proper channel.

Under the above circumstances, I would sincerely pray before you to kindly issue me vigilance clearance certificate, since the vexatious and frivolous complaint was made falsely in order to malign my reputation. Now, I want to apply outside organizations for higher posts namely in IIT Delhi for the post of Registrar. Copy of the advertisement is attached, **Annexure – XII**, for your kind reference and the last date of online application is 20.12.2022 (5:00 PM). I also request you to kindly inform me the name, address and contact number of the Complainant, since I believe it is not a whistle blower complaint.

I hope your benign and kind intervention would help me to get justice in this issue to douse my mental agony during the period of Azadi Ki Amrit Mahatsov.

Best regards,

Jai Hind,

(Jadab Kumar Pal)
Mobile: 9432489098

Enclosure: As stated.

CC:

1. Director, Indian Statistical Institute, Kolkata - 700108

2. Shri Pabitra Banik, Vigilance Officer (Part-time)
   Agricultural Ecological Research Unit, Biological Science Division
   Indian Statistical Institute, 203 B T Road, Kolkata- 700108

3. In-Charge, Personnel Unit
   Indian Statistical Institute, Kolkata - 700108

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INDIAN STATISTICAL INSTITUTE

Prof. Pabitra Banik
Phone 2575 3226
Fax +(91)(33) 2577 6680; 2577 3049
e-mail pbanik@isical.ac.in

Vigilance Officer
203 BARRACKPORE TRUNK ROAD
KOLKATA 700 108, INDIA

TO WHOM IT MAY CONCERN

This is to certify that one vigilance case is pending, but no disciplinary action has been taken against Mr Jadab Kumar Pal, Deputy Chief Executive (Administration), O/o The Chief Executive (A&F), Indian Statistical Institute, Kolkata. He has applied for the post of Registrar in Maharashtra National Law University, Aurangabad.

P Banik

(Pabitra Banik)

26th May 2022

Professor Pabitra Banik,
Vigilance Officer (Part time)
Indian Statistical Institute
203, Barrackpore Trunk Road
Kolkata-700108

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INDIAN STATISTICAL INSTITUTE

Prof. Pabitra Banik
Phone 2575 3226
Fax +(91) (33) 2577 6680, 2577 3049
e-mail pbanik@isical.ac.in

Vigilance Officer
203 BARRACKPORE TRUNK ROAD
KOLKATA 700 108, INDIA

To Dr. Jadab Kr. Pal,
The Deputy Chief Executive (Admin) 'A'
Indian Statistical Institute
203, B.T. Road
Kolkata-700108

Sub: Comments/views regarding the complaint on selection to the post of Deputy Chief Executive (Admin) 'A'

Dear Dr. Pal,

A complaint has been received via Central Vigilance Commission, where the following is mentioned.

"The selection of Jadav Pal to the post of Deputy Chief Executive (A&F) is fake. He had no requisite experience in G.P. 6600 as advertised in the mass media."

As per the format of the Vigilance Report, we need to incorporate your views/comments regarding this complaint. Kindly share the same at your earliest convenience.

Thanking you,
Yours sincerely,

Date: 25.11.2020

Place: ISI, Kolkata

(Pabitra Banik)

गोपनीय
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150 YEARS OF CELEBRATING THE MAHATMA

भारतीय सांख्यिकीय संस्थान
INDIAN STATISTICAL INSTITUTE

Jadab Kumar Pal
M.Sc., LL.M., PGDBA, Ph.D. (IIT Kharagpur)
Deputy Chief Executive (Administration)

203, बैरकपुर ट्रंक रोड/ Barrackpore Trunk Road
कोलकाता / Kolkata -700108, भारत / INDIA
दूरभाष/Telephone : (033) 2575 – 2723
फैक्स/ FAX : + (91) (33) 2577 6033

Ref No.: NIL
Date: 03/12/2020

Sub: Comments/ views on CVC complaint

Kindly refer letter Ref NIL, dated 25.11.2020, issued by the VO, Indian Statistical Institute, Kolkata, regarding CVC complaint, received on 02.12.2020. Since the undersigned has been requested to comments and offer views on the issue, in reply the following comments may be noted:

These are the malicious activities of the frenemy kids in collusion with the ISI VIRUSES.

Let the whole world be informed that the undersigned has worked in Indian Statistical Institute from 03.08.2010 to 07.09.2018 in GP Rs.6600/-. This fact may be verified from the official record of the Institute.

Therefore, in conclusion the undersigned is of the view to drop this issue due to vague complaint against "Jadav Pal" since "Jadav Pal" and Jadab Kumar Pal is not same person as mentioned in the complaint.

CE(A&F) is requested to forward it to VO.

Deputy Chief Executive (Admin)

Chief Executive (A&F)

VO, ISI Kolkata

S.Ch
03.12.20
ISI
CE (A&F)'S Office

CC:
In-Charge, PU

(f) After receipt of the report, the Commission may tender its advice or seek further information or clarification (FI) from the CVO. Upon receiving such further report as called for, the Commission would tender its advice. In respect of references made by the Commission to the Ministries, Departments / Organisations for clarification and / or comments, the same should be sent to the Commission within six weeks. If, in any case, it is not possible to do so, the Chief Vigilance Officer concerned should, after satisfying himself / herself of the reasons for delay, write to the Commission for extension of time.

3.4.3 [14]**Complaints forwarded for necessary action or closed / filed:**

(a) A complaint of the following nature shall not be entertained by the Commission and shall be filed (no action taken) or forwarded to the CVO for necessary action as deemed fit, namely:

(i) where allegations are administrative in nature such as those relating to transfer, posting, promotion, recruitment, suspension, travelling & other allowances, leave, etc.

(ii) which are addressed or endorsed to multiple authorities;

(iii) which are not directly addressed to the Commission;

(iv) which are anonymous or pseudonymous;

(v) which are vague, frivolous or not specific in content or nature;

(vi) contain matters which are sub-judice before any competent Court or Tribunal or Authorities;

(vii) which are against private persons, State Government officials, members of Parliament or State Legislature, elected representatives of other bodies, members of judiciary or officials or private organizations;

(viii) which are not against the category of public servants as specified under *sub section (2) of section 8 of the Act* and the notification issued thereunder; and

(ix) which are illegible.

[14] Sub para (a) substituted / modified for more clarity and in the light of CVC Regulations 2021.

Complainant may find out the status of those complaints which have been referred by the Commission for necessary action from the CVO of the concerned Organisation / Ministry or Department.

(b) The Commission expects the CVO to scrutinise the complaints sent by the Commission for necessary action and decide action on such complaints within a period of one month from the date of receipt of complaint from the Commission.

(c) Complaints referred to CVOs for necessary action must be referred back to the Commission for advice, if they have been investigated and a vigilance angle has come to notice against an officer falling under the jurisdiction of the Commission. If any such complaints are taken up for inquiry / investigation by the CVO, the time limit of [15]three months for completion of investigation and submission of report would apply. Otherwise, such complaints require no further reference to the Commission and are to be disposed of by the Departments / Organisations themselves after taking necessary action. In terms of [16]*CVC Circular No. 004/VGL/020(Pt.) dated 13.08.2020*, the CVO should update the status of complaints sent for necessary action on the Commission's website at *www.portal.cvc.gov.in*.

(d) However, all the complaints made under PIDPI Resolution which have been forwarded to the CVO for necessary action must be referred back to the Commission, irrespective of Commission's normal jurisdiction, for advice if they have been investigated and [17]the allegation of corruption or mis-use of office by an employee has come to notice.

3.4.4 ***Procedure for handling Complaints received by the Commission against Secretaries to GoI and Chief Executives / CMDs and Functional Directors of PSEs, PSBs and FIs:***

(a) Complaints against Secretaries to the Government of India, received by the authorities other than the Commission will be referred to the Cabinet Secretariat for placing before the Group of Secretaries headed

[15] Inserted words "three months".
[16] Inserted.
[17] Inserted words "the allegation....to notice" to make it sync with PIDPI Resolution 2004.

भारतीय सांख्यिकीय संस्थान
INDIAN STATISTICAL INSTITUTE

लेफ्टिनेंट कर्नल संदीप पाल
Lieutenant Colonel Sandeep Pal
कार्यवाहक मुख्य कार्यपालक (प्रशासन एवं वित्त)
और प्रथम अपीलीय प्राधिकारी
Officiating Chief Executive (Admn. & Finance) & First Appellate Authority

203, बैरकपुर ट्रंक रोड /BARRACKPORE TRUNK ROAD
कोलकाता / KOLKATA -700108, भारत / INDIA
दूरभाष/TELEPHONE : (033) 2575 2071
फैक्स / FAX : + (91) (33) 2577 6033
ई-मेल / e-mail : ceaf@isical.ac.in

No.CAF/21-A/2022-23/562
26 September, 2022.

Dr. Jadab Kumar Pal
Dy. Chief Executive (Admn.) GA
Indian Statistical Institute
203, B.T. Road
Kolkata – 700 108.

Dear Dr. Pal,

This refers to your appeal dated 4th August 2022 with reference to your RTI application dated 6th July 2022 and reply furnished by the CPIO vide his letter reference No. CAF/21-A/462 dated 4th August 2022. I have personally gone through your application and seen the information as provided by the CPIO against your application. Presently no further information is held with the Office which can be offered to you on the issues raised.

However, information has been sought on the subject from the PTVO of ISI and Shri T. Q. Mohammad, CVO & Joint Secretary (Admn.), MoS & PI on 10th August 2022 and 19th September 2022 respectively. We are yet to receive any information from the person/department concern till date. Once it is received, it will be intimated to you accordingly.

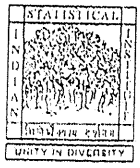
Thanking you,

Yours sincerely,

Officiating Chief Executive (Admn. & Finance)
& First Appellate Authority

भारतीय सांख्यिकीय संस्थान
INDIAN STATISTICAL INSTITUTE

लेफ्टिनेंटकर्नलसंदीपपाल
Lieutenant Colonel Sandeep Pal
कार्यवाहक मुख्यकार्यपालक (प्रशासनएवंवित्त)
और प्रथम अपीलीय प्राधिकारी
Officiating Chief Executive (Admn. & Finance) & First Appellate Authority



203, बैरकपुरट्रंकरोड /BARRACKPORE TRUNK ROAD
कोलकाता/ KOLKATA -700108,भारत / INDIA
दूरभाष/TELEPHONE (033) 2575 2071
फैक्स /FAX : (91) (33) 2577 6033
ई-मेल/ e-mail : ceo@isical.ac.in

No. CAF/21-A/22-23/561
30 September, 2022

Dr. Jadab Kumar Pal
Dy. Chief Executive (Admn.) GA
Indian Statistical Institute
203, B. T. Road
Kolkata – 700108

Dear Dr. Pal

Further to our letter No. CAF/21-A/2022-23/562 dated 26th September, 2022, you are hereby informed that the undersigned has received on OM from Vigilance Section, MoS&PI vide File No. M-11021/5/2020-Vig. dated September, 2022 where it is mentioned that Ministry has not received any copy of the reference No NIL dated 26.05.2022 vide which the vigilance clearance has been denied by the PTVO, ISI Kolkata in respect of Shri Jadab Kumar Pal. Therefore, presently MoS&PI is not in a position to relate document/complaint on the basis of which PTVO denied the vigilance clearance to Shri Jadab Kumar Pal.

In view of the same you are requested to forward the said correspondence reference NIL dated 26.05.2022 so that the same can be forwarded to MoS&PI through the Director as per SOP dated 16.06.2022 issued by MoS&PI for necessary action at their end.

Thanking you.

Yours sincerely,

Officiating Chief Executive (Admn & Finance)
&
First Appellate Authority

Re: RTI-FAA reply

From: JADAB KUMAR PAL (jadabpal@yahoo.co.in)

To: dceb@isical.ac.in; ceaf@isical.ac.in

Cc: council@isical.ac.in; officer.council@isical.ac.in

Date: Monday, 10 October, 2022, 05:40 pm IST

Dear Sir,

Reference to your letter No.CAF/21-A/22-23/569, dated 30th September 2022, seeking letter by which the vigilance clearance has been denied by the PTVO, ISI Kolkata, the same is given in the attachment file along with the other communication, inter-alia, dated 25.11.2020 issued by the PTVO, ISI Kolkata.

Best regards,
--Jadab

Dr Jadab Kumar Pal, M.Sc, LL.M. (Medalist), Ph.D. (IIT Kharagpur)
Former Teacher-in-Charge, Jalpaiguri Law College
Member, Advisory Board, Dept of Law, Brainware University
98 Desh Bandhu Road (East), Kolkara - 700035

Contact: +91-9432489098

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On Saturday, 1 October, 2022, 08:15:55 am IST, JADAB KUMAR PAL <jadabpal@yahoo.co.in> wrote:

Sir,
Thanks for your reply.
I'm now at Mumbai and do the needful.
Namaste,
--Regards,
Jadab Kumar Pal

Sent from Yahoo Mail on Android

On Fri, 30 Sept 2022 at 18:24, CEAF Office
<ceaf.isi@gmail.com> wrote:

Sir,

The letter regarding the above mentioned subject is attached herewith for your kind information.

Jai Hind and regards,

Lt Col Sandeep Pal
Officiating Chief Executive (Admn. & Finance)

Rules.' (Emphasis Supplied) XXX

15. It may be further added that the Respondent has already retired on 31st October 2009. Further, even the censure awarded to the Petitioner has been File No : CIC/CVCOM/A/2017/120855/SD quashed by this Court by an order dated 9th August 2010 in Writ Petition (Civil) No. 12462 of 2009. The Respondent has also placed on record a copy of the order passed by the CGDA treating the suspension period as duty period, and directing the release of full pay and allowances to the Respondent for the said period.

16. In light of the above developments, this Court finds no merits in any of the apprehensions expressed by the CPIO in the order rejecting the Respondent s application with reference to either Section 8(1)(g) of the RTI Act 2005.The disclosure of information sought by the Petitioner can hardly endanger the life or physical safety of any person. There must be some basis to invoke these provisions. It cannot be a mere apprehension.

17. As regards Section 8(1)(j), there is no question that notings made in the files by government servants in discharge of their official functions is definitely a public activity and concerns the larger public interest. In the present case, Section 8(1)(j) was wrongly invoked by the CPIO and by the Appellate Authority to deny information to the Respondent.

Now, Commission is of the considered opinion that the instant case is squarely covered by the aforementioned ratio of Hon'ble Delhi High Court as in this case also Appellant has sought for relevant correspondences, file noting(s) pertaining to his own investigation. Further, the argument of the CPIO that the information is being withheld as third party information of the public authority points more towards the factum of a fiduciary relationship that exists between the public authority and the officers tendering the file noting(s) in vigilance cases. In this context, adverting to the ratio laid down by the Hon'ble Delhi High Court, Appellant cannot be denied the disclosure of file noting(s) pertaining to an investigation against his own self. Moreover, as evinced from the aforesaid judgment, extending a fiduciary status to these file noting(s) on the pretext that these have been originated by third party officers and thus is exempted from disclosure under the garb of Section 8(1)(g) of RTI Act is not appropriate.

In the instant case, keeping in view the apprehensions of the CPIO, Section 8(1)(g) of RTI Act can at best be invoked to obliterate only the names, designations and any other identifying particulars of the other officers from the relevant file noting(s), correspondences and letters.

In view of the foregoing, Commission directs the CPIO to provide relevant and available information sought in the RTI Application with respect to the investigation held against the Appellant. In doing so, CPIO is at liberty to obliterate (by way of blacking out or severance) the names, designations and identifying particulars of any other individual figuring in the records except that of the Appellant. This shall be done in consonance with the provisions of Section 10 of RTI Act. The said information shall be provided free of cost to the Appellant within 15 days from the date of receipt of this order and a compliance report to this effect be duly sent to the Commission by the CPIO.

Re: Request for NOC with VC

From: Pabitra Banik (banikpabitra@gmail.com)

To: jadabpal@yahoo.co.in

Cc: dceb@isical.ac.in; pbanik@isical.ac.in; partha8705@gmail.com

Date: Friday, 28 October, 2022, 11:49 am IST

Dear Dr. Pal,
I will be happy to provide the vigilance certificate, but you have to apply through the proper channels.
Thanking you,
Pabitra Bani, PTVO, ISI

Pabitra Banik,
Professor
Agricultural and Ecological Research Unit,
Biological Sciences Division
Indian Statistical Institute
203, B T Road, Kolkata 700108
INDIA

On Thu, Oct 27, 2022 at 5:34 PM JADAB KUMAR PAL <jadabpal@yahoo.co.in> wrote:

> Sir,
> I want to apply to the post of Registrar at BIT Mesra, Ranchi. I would, therefore, be thankful if you Kindly issue me a certificate in the attached format. You may also forward this to the PTVO of the Institute in case his endorsement is required.
> Detailed advertisement and application form is given in the attachment file for your ready reference.
> Best regards,
> --DCE (A) GA

Deputy Chief Executive (A) GA
Indian Statistical Institute
203 B T Road, Kolkata - 700108
website: http://www.isical.ac.in

Member, Advisory Board, Dept of Law, Brainware University, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB

Contact: +91-9432489098

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(7)

Mast Immediate

No. 104/33/2005-AVD.I
Government of India
Ministry of Personnel & Public Grievances & Pensions
(Department of Personnel & Training)

New Delhi, Dated October 29, 2007

OFFICE MEMORANDUM

Subject:- Guidelines regarding grant of 'Vigilance Clearance' to AIS Officers.

The undersigned is directed to say that the matter regarding guidelines for giving vigilance clearance to All India Services officers has been under consideration of the Department of Personnel & Training in consultation with the Central Vigilance Commission. The Competent Authority has approved the following guidelines for the grant of vigilance clearance in respect of All India Services officers with immediate effect:

1. These orders regarding accordance of vigilance clearance to AIS officers shall be applicable with respect to (a)inclusion in the offer list (b) empanelment (c]any deputation for which Central Government clearance is necessary, including deputation under Rule 6(1) and 6(2)(ii) of the AIS (Cadre) Rules (d) appointments to sensitive posts (e) assignments to training programmes (except mandatory training) (f) premature repatriation to the cadre. In all these cases, the vigilance status may be placed before and ,considered by the Competent Authority before a decision is taken.

2. The circumstances under which vigilance clearance shall not be withheld shall be as under:

a) Vigilance clearance shall not be withheld due to the filing of a complaint, unless it is established on the basis of at least a preliminary inquiry or on the basis of any information that the concerned Government may already have in its possession, that there is, prima facie, sibstance to verifiable allegations regarding (i) Corruption (ii) Possession of assets disproportionate to known sources of income (iii) Moral turpitude (iv)violation of AIS Conduct Rules.

b) Vigilance clearance shall not be withheld if a preliminary inquiry mentioned in 2(a) above takes more than three months to be completed.

c) Vigilance clearance shall not be withheld unless (i) the officer is under suspension (ii) the officer is on the Agreed List, provided that in all such cases the position shall be mandatorily revisited after a period of one year (iii) a chargsheet has been issued against the officer in a disciplinary proceeding and the proceeding is pending (iv) orders for instituting disciplinary proceeding against the officer have been issued by the Disciplinary Authority provided that the chargesheet is served within three months from the date of passing such order (v) chargesheet has been filed in a Court by the Investigating Agency in a criminal case and the case is pending (vi) orders for instituting a criminal case against the officer have been issued by the Disciplinary Authority provided that the chargesheet is served within three months from the date of initiating proceedings (vii) sanction for investigation or prosecution has been granted by the Competent Authority in a case under the PC Act or any other criminal matter (viii) an FIR has been filed or a case registered by the concerned Government against the officer provided that the charge sheet is served within three months from the date of filing/registering the FIR/case. (ix) The officer is involved in a trap/raid case on charges of corruption and investigation is pending.

d) Vigilance clearance shall not be withheld due to an FIR filed on the basis of a private complaint unless a chargesheet has been filed by the investigating agency provided that there are no directions to the contrary by a competent court of law.

e) Vigilance clearance shall not be withheld even after sanction for prosecution if the investigating agency has not been able to complete its investigations and file charges even after a period of two years. However, such vigilance clearance will entitle the officer to be considered only to be appointed to non-sensitive posts and premature repatriation to the cadre and not for any other dispensation listed in Para 1 above.

3. In cases where complaints have been referred to the State, and no substantive response has been received from the State within three months from the date on which the reference was made, the Cadre Controlling Authority may provide a copy of the complaint to the officer concerned to seek his comments. If the comments are found to be prima facie satisfactory by the Competent Authority, vigilance clearance shall be accorded.

4. Vigilance clearance shall be decided on a case-by-case basis by the Competent Authority keeping in view the sensitivity of the purpose, the gravity of the charges and the facts and circumstances, in the following situations:

(72)

a) Where the investigating agency has found no substance in the allegation but the Court refuses to permit closure of the FIR.

b) Where the Investigating Agency/IO holds the charges as proved but the State Government differs on the converse.

5. While considering cases tor grant of vigilance clearance for the purpose of empanelment of AIS officers of a particular batch, the vigilance clearance/status will continue to be ascertained from the respective State Government. In respect of oflicers serving in connection with the affairs of the Central Government, the vigilance status/clearance will be obtained from the respective Ministry. In all cases, the comments of the CVC will also be obtained. However, if no comments are received within a period of three months, it will be presumed that there is nothing adverse against the officer on the records of the body concerned.

6. Vigilance clearance will be issued in all cases with the approval of the Head of Vigilance Division for officers upto one level below their seniority in service. In the case of officers of the level of AS/Secretary, this will be issued with the approval of the Secretary . In case of doubt, order of Secretary will be obtained keeping in view the purpose for which the 'vigilance clearance' is required by the indenting authority.

7. Vigilance clearance will not normally be granted for a period of three years after the currency of the punishment, if a minor penalty has been imposed on an officer. In case of imposition of a major penalty, vigilance clearance will not normally be granted for a period of five years, after the currency of punishment. During the period, the performance of the officer should be closely watched.

(Kabindra Joshi)
Under Secretary to the Govt. of India

Prime Minister's Office (W.r.t. their I.D. No. 600/68/13/07-ESII, dated 24.10.2007)
Cabinet Secretariat
Ministry of Home Affairs
Ministry of Environment & Forests
Secretary, Central Vigilance Commission

Copy to:

(i) PS to MOS(PP)
(ii) PPS to Secretary(P)
(iii) PPS to AS(S&V)
(iv) EO & AS, DOP&T
(v) PS to JS(V)

कार्मिक और प्रशिक्षण विभाग
Deptt. of Personnel & Tra
प्राप्ति और निर्गम अनुभाग
Receipt & Issue Section

Fwd: vigilance certificate CONFIDENTIAL

From: Partha Bhattacharya (partha8705@gmail.com)

To: jadabpal@yahoo.co.in

Date: Friday, 18 November, 2022, 09:16 pm IST

---------- Forwarded message ---------
From: **Pabitra Banik** <banikpabitra@gmail.com>
Date: Fri, 18 Nov 2022, 18:50
Subject: Re: vigilance certificate CONFIDENTIAL
To: Partha Bhattacharya <partha8705@gmail.com>

Dear Sir,
Please forward the hard copy of the application to the BITS Mesra, and advise Mr Pal to upload the application without vigilance clearace certificate. The CVO advised me not to issue the vigilance clearance certificate to Jadab Kumar Pal as the vigilance complaint is pending with CVC.
Thank you,
Pabitra Banik
PTVO, ISI

On Fri, 18 Nov 2022, 18:18 Partha Bhattacharya, <partha8705@gmail.com> wrote:
Sir,

This is for your kind information and necessary advice please.

Partha Bhattacharya
AO/PU

---------- Forwarded message ---------
From: **JADAB KUMAR PAL** <jadabpal@yahoo.co.in>
Date: Fri, Nov 18, 2022 at 5:47 PM
Subject: Re: vigilance certificate
To: Partha Bhattacharya <partha8705@gmail.com>, Dceb <dceb@isical.ac.in>, ceaf@isical.ac.in <ceaf@isical.ac.in>
Cc: Legal Cell <legalcell@isical.ac.in>, Utpal Mahato <utpalmahato81@gmail.com>, Durgam Giri <g.durgam@gmail.com>

Sir,
Today is the deadline for submission of application to the post of Registrar at BIT Mesra. As informed by the AO PU for submission of the application to PU, I'm to inform that in online application the NOC along with the vigilance clearance certificate in the prescribed format is to be uploaded in the BIT recruitment website for getting the hard copy of the application that is to be routed through the PU. Hence I'm unable to submit the same.
I hope that the AO, PU and Officiating CE(A&F) will take urgent necessary steps to handover the same to me through the proper channel.
Looking forward your cooperation.
Best regards,
--Jadab

Deputy Chief Executive (A) GA

Indian Statistical Institute
203 B T Road, Kolkata - 700108
website: http://www.isical.ac.in

Member, Advisory Board, Dept of Law, Brainware University, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB

Contact: +91-9432489098

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On Friday, 18 November, 2022, 01:45:19 pm IST, Partha Bhattacharya <partha8705@gmail.com> wrote:

Sir,

As instructed by Officiating CE(A & F) and PTVO of the Institute, I could not provide the vigilance certificate to you.

Thanks,

Partha Bhattacharya
AO/PU

---------- Forwarded message ---------
From: **JADAB KUMAR PAL** <jadabpal@yahoo.co.in>
Date: Fri, Nov 18, 2022 at 1:20 PM
Subject: Re: vigilance certificate
To: Partha Bhattacharya <partha8705@gmail.com>
Cc: ceaf <ceaf@isical.ac.in>

Dear Sir,
As a part of online application I have to upload the same in the recruitment portal of the BIT Mesra. Kindly provide me the same to enable me to take print of the application.
Best regards,
--Jadab Kumar Pal

Deputy Chief Executive (A) GA
Indian Statistical Institute
203 B T Road, Kolkata - 700108
website: http://www.isical.ac.in

Member, Advisory Board, Dept of Law, Brainware University, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB

Contact: +91-9432489098

This e-mail may contain confidential, privileged, or protected information. If the addressee is not the intended recipient of this e-mail, please delete it and notify the sender that it is received in error, and do not distribute, or disclose any information herein in any manner. This e-mail and its attachment(s) are believed free from virus or

other defect, but it is the responsibility of the recipient to ensure that it free from virus and the sender of this e-mail would not be liable in any way for any loss or damage or use thereof. All legal disputes are subject to jurisdiction of High Court at Calcutta.

On Friday, 18 November, 2022, 01:17:09 pm IST, Partha Bhattacharya <partha8705@gmail.com> wrote:

Sir,

I have received your vigilance certificate through email from the PTVO of the Institute on 17th November 2022. I am requesting you to submit your application for outside employment in the Personnel Unit immediately.

Thanks,

Partha Bhattacharya
AO/PU

भारतीय प्रौद्योगिकी संस्थान दिल्ली
Indian Institute of Technology Delhi

Hauz Khas, New Delhi – 110016. Website : www.iitd.ac.in

Advt. No. E-II/11/2022 (DR)

ONLINE applications are invited from the Indian Nationals for filling up the following post on Direct Recruitment basis, failing which by Deputation basis: -

Grp.	Mode of Recruitment	Name of the post	No. of vacancies	Age limit (as on closing date of receipt of application)	Pay Scale & Matrix as per 7th CPC
A	Direct Recruitment* / Deputation basis**	Registrar	01 (Unreserved)	Preferably below 57 years	Rs.144200-218200/- Level 14 of Pay Matrix as per 7th CPC

* This post is a tenure post for a maximum period of 05 years. There is no provision for absorption on the post.

**The period of deputation, including the period of deputation in another ex-cadre post held immediately preceding this appointment in the same or some other organization or department of the Central Government, shall be two (02) years from the date of beginning of the deputation extendable up to a maximum period of five (05) years with the approval of the competent authority.

Job Description:

The Registrar of the Institute is the custodian of records, the common seal and funds of the Institute. He/she is the Secretary of the Board of Governors, Senate, Finance Committee and Building & Works Committee. He/she has the overall responsibility of the office including recruitment, purchases and accounts. He/she is required to provide administration support to the Director and may be called upon to take up any other duties assigned by the Director or the Board of Governors.

Prescribed Educational and other qualifications required for Direct Recruitment:

Essential:

Master's degree or equivalent from recognized university in any discipline with at least 55% marks or its equivalent Grade of 'B' in the UGC seven points scale and consistently good academic record.

Experience:

(i) At least 15 years of experience as Assistant Professor in the AGP Rs. 7000 (6th CPC) and above or with 08 years of service in the AGP of Rs. 8000 and above including as Associate Professor along with experience in educational administration.

OR

Comparable experience in research establishments and/or other Institutions of higher education.

OR

15 years of administrative experience of which 08 years regular service as Deputy Registrar or an equivalent post in the Grade Pay of Rs. 7600 and above.

(ii) Experience in handling computerized administration/ financial matters.

Desirable:

(i) A degree in Law/ Management/ Engineering from a recognized University/ Institute.

(ii) Experience in educational administration, financial and personnel management and capacity to lead the administration in a residential institution.

Prescribed Educational and other qualifications required for Deputation Basis:

Officers under the Central / State Governments / Universities / Recognized Research Institutes or Institutes of national importance:-

a) i) Holding analogous post **OR**

ii) With at least 03 years regular service in posts with Pay Level 13 as per 7th CPC (Grade Pay of Rs. 8700/- as per 6th CPC) or equivalent; and

b) Possessing minimum educational qualifications and experience as prescribed above.

GENERAL INSTRUCTIONS TO NOTE:-

1) Candidates should carefully read the requisite minimum essential qualifications, age and eligibility, experience criteria etc. laid down in the advertisement before applying for this post. Since all the applications will be screened on the basis of data submitted by the candidate in the online application form, the candidates must satisfy themselves of the suitability for the position to which they are applying. If at any stage during the recruitment and selection process, it is found that candidates have furnished false or wrong information, their candidature will be rejected.

2) Application once submitted cannot be altered/ resubmitted, under any circumstances. Further, no request with respect to making changes in any data/ particular entered by the candidate in the Online Application will be entertained once the application is submitted successfully. Therefore, please keep all data/ details ready before you start filling up the Application Online.

3) In addition to the Matrix as per 7th CPC as mentioned against each post, the posts carry the usual allowances at par with those admissible under IIT Delhi rules in the corresponding Pay Matrix.

4) Printout of final Online submitted application along with photocopies of supporting documents in respect of your Educational Qualification, Marksheet, Experience & Salary etc. which you have mentioned in your online application, to be forwarded to the Recruitment Cell, IIT Delhi through Proper Channel alongwith following documents:

(i) Cadre Clearance from Cadre Controlling Authority.

(ii) Vigilance Clearance Certificate that no Disciplinary/Vigilance case is pending or contemplated against the officer.

(iii) Certificate that no major/minor penalty has been awarded to him/her during the last ten years.

(iv) The complete and upto date photocopies of CR dossiers/Assessment reports of the officers for the last 5 years duly attested by an officer on each page.

(v) If Present post held on regular basis: -

(a) Grade Pay/ Pay Level of the post.
(b) Grade Pay/ Pay Level in which the pay is being drawn by the applicant.
(c) Reasons for difference, if any, in (a) & (b) above i.e. whether Grade Pay/ Pay Level under NFU/NFSG/MACP etc.

Present post held, if different from above, on regular basis: -

(a) Designation & Name of the Office.
(b) Grade Pay/ Pay Level of the post.
(c) Grade Pay/ Pay Level in which the pay is being drawn by the applicant.
(d) If the post is held on deputation basis, the number of years spent on deputation basis.

5) IIT Delhi reserves the right to fill or NOT to fill any of the posts advertised, in the event or exigency so decided by the Institute.

6) In case of any dispute/ ambiguity/ confusion that may occur in the process of selection, the decision of the Director, IIT Delhi shall be final.

7) **TA Reimbursement**

No travelling allowance (TA) shall be paid to the outstation candidates called for certain evaluation process. However, SC/ST candidates called for certain evaluation process will be paid 2nd AC Class Railway fare from the place of duty/residence to Delhi and back by the shortest route. The reimbursement of the admissible amount will be made through transfer to their Bank Account on submission of NEFT details by the concerned candidate, and no cash will be paid on the spot. SC/ST candidates already in Central/State Government organizations, Autonomous Body, Public Sector Units etc. services are not admissible for the same.

8) The age of superannuation for this post is 62 years.

9) (a) The candidates are required to apply **ONLINE** only from **10.11.2022 to 20.12.2022 upto 05:00 PM. Both dates are inclusive.**

(b) For submission of application through ONLINE MODE, please visit **Institute's website:**
1. Direct Link: https://ecampus.iitd.ac.in/IITDSR-0/login
2. Alternatively: http://www.iitd.ac.in/jobs-iitd/index.php

(c) Applicants should send the printout of completed application alongwith above stated documents THROUGH PROPER CHANNEL to **the Recruitment Cell, Room No. 207/C-7, Adjoining to Dy. Director (Ops)'s Office, IIT Delhi, Hauz-Khas, New Delhi – 110016** within 10 days of the last date of submission of Application Form, failing which such persons shall be required to produce NOC at the time of selection process, provided they must have sent an Advance Copy. The candidate will have to clearly superscribe **"Application for the post of Registrar (Direct/Deputation)"** on the top of the envelope in capital letters.

(d) Incomplete application will be summarily rejected.

10) No correspondence or query will be entertained from the candidates regarding the eligibility, status of application, postal delays, conduct and result of Interview, selection process etc.